

ACME SUPPLY AGREEMENT  
Document ID: EVAL-CONTRACT-001

Section 1. Parties

Buyer: Northwind Retail LLC. Supplier: Blue Harbor Components Ltd.

Section 2. Delivery

Supplier must deliver conforming goods to Buyer's Shanghai warehouse on or before the delivery date stated in each purchase order.

A delivery is late if the goods arrive more than five business days after the applicable delivery date.

Section 5. Payment

Buyer must pay undisputed invoices within 30 calendar days after receiving a valid invoice. Disputed invoice amounts may be withheld until the dispute is resolved in writing by both parties.

Section 12.2 Liquidated Damages

Marker: EVAL-C-12.2.

If Supplier delivers goods more than five business days late, Supplier must pay liquidated damages equal to 0.5% of the delayed shipment value for each day of delay.

Liquidated damages are capped at 10% of the delayed shipment value.

Payment of liquidated damages does not limit Buyer's right to reject nonconforming goods.

Section 14. Confidentiality

Each party must protect the other party's confidential information using reasonable care and may use it only to perform this agreement.

The confidentiality obligation survives for three years after termination.